

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

CITADEL SECURITIES LLC,

Plaintiff,

v.

CONSOLIDATED AUDIT TRAIL, LLC,

Defendant.

Civil Action No. 1:26-cv-00134

**PLAINTIFF CITADEL SECURITIES LLC'S
MOTION FOR PRELIMINARY INJUNCTION**

Pursuant to Federal Rule of Civil Procedure 65 and Local Civil Rule 65.1, Plaintiff Citadel Securities LLC hereby moves for a preliminary injunction barring Defendant Consolidated Audit Trail, LLC (CAT LLC) from spending or otherwise depleting any money in its reserve of funds until the U.S. Securities and Exchange Commission (SEC) resolves Citadel Securities' pending petition for rulemaking. As set forth in the accompanying Memorandum of Points and Authorities, Citadel Securities is likely to succeed on the merits of its claim that CAT LLC's expenditure of the reserve without government supervision violates the private nondelegation doctrine. Citadel Securities is suffering and will continue to suffer irreparable injury absent the requested relief, and the balance of the equities and public interest favor a preliminary injunction.

Pursuant to Local Civil Rules 7(f) and 65.1(d), Plaintiff Citadel Securities respectfully requests an oral hearing to be scheduled as soon as practicable. As explained more fully in the Memorandum in support of this Motion, CAT LLC is already

spending down the reserve and plans to deplete the reserve by August 2026. Draining the reserve will irreparably harm Citadel Securities and undercut various proposals currently before the SEC that would benefit broker-dealers like Citadel Securities, and the money likely cannot be recouped once it is spent.

In compliance with Local Civil Rule 7(m), counsel for Citadel Securities, on January 16, 2026, contacted via email counsel understood to be representing CAT LLC to confer about the relief sought in this Motion and in the Complaint. Counsel responded that CAT LLC would not be able to provide its position on the relief sought prior to this filing.

Dated: January 16, 2026

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Respectfully Submitted,

/s/ Noel J. Francisco

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**pro hac vice applications pending*

Counsel for Plaintiff Citadel Securities LLC

CERTIFICATE OF SERVICE

I hereby certify that on January 16, 2026, I filed the foregoing document with the Clerk of Court for the U.S. District Court for the District of Columbia using the court's CM/ECF system. I further certify that a copy of the foregoing and accompanying memorandum and attachments will be sent via email to the below:

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